Incident Response Retainer Agreement

Priority access to BVTech incident response services

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Retainer Services

For the annual retainer fee below, Provider will provide Client priority incident response services: guaranteed response initiation within two (2) hours of a declared security incident (24×7), pre-incident readiness (contact tree, environment familiarization, IR plan review), and the included response hours below. Unused included hours may be converted to proactive security services in the final quarter of the retainer year.

Item	Value
Annual retainer fee	$
Included IR hours	
Additional IR hourly rate (business hours)	$
Additional IR hourly rate (after-hours/weekend)	$
Declared-incident hotline	

Incident Declaration and Engagement

Client declares an incident via the hotline or designated email. Provider will triage, establish an incident commander, and proceed under the Incident Response Plan (BVT-IRP-045). Client authorizes Provider to take reasonable containment actions and to engage, at Client's expense with approval, specialized third parties (forensics, breach counsel, ransom negotiation) where warranted.

Scope Notes

IR services include identification, containment, eradication, recovery coordination, and a post-incident report. They do not include legal advice, regulatory notification decisions (which Client should make with breach counsel), ransom payments, or hardware replacement costs. Provider will preserve evidence per industry practice but is not a substitute for a certified forensics laboratory where litigation-grade forensics are required.

Insurance Coordination

Client should notify its cyber insurer promptly upon incident declaration; many policies require use of panel vendors. Provider will cooperate with Client's insurer and panel counsel, and can work under counsel's direction to support privilege where Client so directs.

Warranties; Disclaimers; Limitation of Liability

Limited Warranty

Provider warrants that Services will be performed in a professional and workmanlike manner consistent with generally accepted industry standards. Client's exclusive remedy for breach of this warranty is re-performance of the deficient Services, or if re-performance is not commercially practicable, a refund of fees paid for the deficient Services.

Disclaimer

EXCEPT AS EXPRESSLY STATED HEREIN, THE SERVICES ARE PROVIDED "AS IS" AND PROVIDER DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. PROVIDER DOES NOT WARRANT THAT SERVICES WILL BE UNINTERRUPTED OR ERROR-FREE, OR THAT ALL SECURITY THREATS WILL BE DETECTED OR PREVENTED. NO MANAGED SECURITY SERVICE CAN GUARANTEE PREVENTION OF ALL CYBER INCIDENTS.

Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY TEXAS LAW, NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, LOST DATA (EXCEPT TO THE EXTENT CAUSED BY PROVIDER'S FAILURE TO PERFORM CONTRACTED BACKUP SERVICES), OR BUSINESS INTERRUPTION, EVEN IF ADVISED OF THE POSSIBILITY. EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF THIS AGREEMENT SHALL NOT EXCEED THE FEES PAID OR PAYABLE BY CLIENT IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM. THESE LIMITS DO NOT APPLY TO: (a) A PARTY'S INDEMNIFICATION OBLIGATIONS; (b) BREACH OF CONFIDENTIALITY; (c) GROSS NEGLIGENCE, WILLFUL MISCONDUCT, OR FRAUD; OR (d) CLIENT'S PAYMENT OBLIGATIONS.

Mutual Indemnification

Each party shall defend, indemnify, and hold harmless the other from third-party claims arising from (i) its gross negligence or willful misconduct, (ii) its violation of applicable law, or (iii) bodily injury or tangible property damage caused by its personnel. The indemnified party shall give prompt notice and reasonable cooperation; the indemnifying party controls the defense and settlement (no settlement imposing obligations on the indemnified party without consent).

Insurance

Provider shall maintain during the term: commercial general liability of at least $1,000,000 per occurrence; professional liability / technology errors & omissions of at least $1,000,000; and cyber liability coverage. Certificates of insurance are available upon written request.

General Provisions

Governing Law and Venue

This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, without regard to its conflict of laws principles. Exclusive venue for any dispute arising out of or relating to this Agreement shall lie in the state or federal courts located in Wharton County or Bexar County, Texas, and each party consents to the personal jurisdiction of such courts.

Dispute Resolution

Before initiating litigation, the parties shall first attempt in good faith to resolve any dispute through direct negotiation between authorized representatives for a period of thirty (30) days. If unresolved, the parties agree to non-binding mediation in Texas with a mutually agreed mediator, with costs shared equally, prior to filing suit. Nothing in this section prevents either party from seeking injunctive relief to protect confidential information or intellectual property.

Attorneys' Fees

In any action to enforce this Agreement, the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs as permitted under Chapter 38 of the Texas Civil Practice and Remedies Code.

Force Majeure

Neither party shall be liable for delay or failure to perform (other than payment obligations) due to causes beyond its reasonable control, including acts of God, natural disasters, utility or internet backbone failures, cyber-attacks by third parties despite commercially reasonable safeguards, epidemics, government action, or labor disputes, provided the affected party gives prompt notice and uses reasonable efforts to mitigate.

Assignment

Neither party may assign this Agreement without the prior written consent of the other, not to be unreasonably withheld, except to a successor in interest by merger, acquisition, or sale of substantially all assets, upon written notice.

Notices

Notices must be in writing and are deemed given when delivered personally, by certified mail (return receipt requested), by nationally recognized courier, or by email with confirmed receipt, to the addresses stated on the signature page or as updated in writing.

Severability; Waiver; Entire Agreement

If any provision is held unenforceable, it shall be modified to the minimum extent necessary and the remainder shall continue in full force. No waiver of any breach is a waiver of any other breach. This Agreement, together with its exhibits, schedules, SOWs, and addenda, constitutes the entire agreement between the parties regarding its subject matter and supersedes all prior discussions. Amendments must be in a writing signed by both parties. This Agreement may be executed in counterparts, and electronic signatures (including via a reputable e-signature platform) are valid and binding under the Texas Uniform Electronic Transactions Act (Tex. Bus. & Com. Code Ch. 322).

Independent Contractors

The parties are independent contractors. Nothing herein creates a partnership, joint venture, agency, or employment relationship.

IN WITNESS WHEREOF, the parties have executed this document as of the Effective Date.

BVTech LLC

Signature: ________________________________

Name: ____________________________________

Title: _____________________________________

Date: _____________________________________

Client

Signature: ________________________________

Name: ____________________________________

Title: _____________________________________

Date: _____________________________________